

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Enoch Sowah	Team: Squad #7	CCRB Case #: 201805666	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 05/02/2018 6:40 AM	Location of Incident: § 87(2)(b)	Precinct: 34	18 Mo. SOL 11/2/2019	EO SOL 11/2/2019	
Date/Time CV Reported Fri, 07/13/2018 4:06 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 07/13/2018 4:06 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. An officer			NARCBMN
2. DT3 Raymond Low	4743	936985	NARCBMN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SDS Robert Kelly	03349	924018	NARCBMN
2. DI Patrick Cortright	00000	910420	NARCBMN
3. DT3 Anthony Chow	07025	932462	NARCBMN
4. DT2 Philip Torres	05659	898653	DBMN
5. CPT John Wilson	00000	920974	NARCBMN
6. DT3 Manuel Cordova	00225	918880	NARCBMN
7. DT2 Guillermo Gil	00719	917681	NARCBMN
8. DT3 Fernando Bonilla	2196	947717	NARCBMN
9. DT3 Cecilio Cintron	03788	897195	NARCBMN
10. DT3 Jeremy Ramos	00285	943716	NARCBMN
11. DT3 Gustavo Rosado	513	946185	NARCBMN
12. DT2 Thomas Carvin	05113	900230	DBMN

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Raymond Low	Abuse: Detective Raymond Low entered § 87(2)(b) in Manhattan	§ 87(2)(b)
B.DT3 Raymond Low	Abuse: Raymond Low searched § 87(2)(b) in Manhattan	§ 87(2)(b)
C.DT3 Raymond Low	Abuse: Detective Raymond Low threatened § 87(2)(b) with the loss of her apartment.	§ 87(2)(b)
D.DT3 Raymond Low	Abuse: Detective Raymond Low threatened to arrest § 87(2)(b)	§ 87(2)(b)
E. An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	§ 87(2)(b)
F. An officer	Abuse: An officer made a sexually suggestive remark to § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
G. An officer	Abuse: An officer made a sexually suggestive gesture towards § 87(2)(b)	

Case Summary

On July 13, 2018, § 87(2)(b) called the CCRB and filed this complaint on behalf of herself and her boyfriend, § 87(2)(b).

On May 2, 2018, at approximately 6:40 a.m., § 87(2)(b) and § 87(2)(b) were inside their apartment, located at § 87(2)(b) in Manhattan, when Detective Raymond Low and additional officers from the Narcotics Borough Manhattan North entered and searched the apartment (**Allegation A and B: Abuse of Authority, § 87(2)(g)**). Det. Low threatened § 87(2)(b) with the loss of her apartment and threatened to arrest her (**Allegation C and D: Abuse of Authority, § 87(2)(g)**). An unidentified officer made sexually suggestive remarks and gestures to § 87(2)(b) and threatened him with the use of force (**Allegations E through G: Abuse of Authority, § 87(2)(g)**).

§ 87(2)(b) was arrested for § 87(2)(b).
§ 87(2)(b) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)

There is no video evidence for this case.

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Raymond Low entered § 87(2)(b) in Manhattan.

Allegation (B) Abuse of Authority: Detective James Burke searched § 87(2)(b) in Manhattan.

It is undisputed that officers from Narcotics Borough Manhattan North entered and searched § 87(2)(b) in Manhattan, pursuant to a valid search warrant on May 2, 2018. Police documentation confirmed that a valid search warrant, New York County search warrant #§ 87(2)(b), was obtained by Det. Raymond Low on § 87(2)(b), for the search of § 87(2)(b)'s apartment, and that the warrant was valid for the date on which it was executed. The search warrant authorized officers to enter and search the apartment, including cell phones and other electronic devices, without prior notice of purpose, and also to search any persons therein, particularly that of a male known as § 87(2)(b).” The search warrant also authorized officers to seize any heroin, fentanyl, currency and other evidence of proceeds from drug trafficking, as well as any evidence demonstrating that the premises was utilized for committing narcotics crime. (Board Review 01).

New York State Criminal Procedure Law Section 690.50 states that a search warrant authorizes a offices to conduct a search of designated premises for the purpose of seizing property, and to deliver any property obtained to the court which issued the warrant. Officers are not required to give prior notice of authority or purpose to the occupants of the premises to be searched, provided the search warrant expressly authorizes entry without notice. (Board Review 02).

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Allegation (C) Abuse of Authority: Detective Raymond Low threatened § 87(2)(b) with the loss of her apartment.

Allegation (D) Abuse of Authority: Detective Raymond Low threatened to arrest § 87(2)(b)

§ 87(2)(b) (Board Review 03) said that the officers found heroin and other narcotics after searching her apartment, and that Det. Low, identified via investigation, asked her if she knew she could be arrested and could possibly lose her apartment as a result of the narcotics. § 87(2)(b) said she did not know about the existence of the narcotics inside her apartment. § 87(2)(b) told the officers that the narcotics were his and that he hid them inside the apartment while § 87(2)(b) was asleep.

§ 87(2)(b) through his attorney, declined to participate in this complaint due to his criminal case stemming from this incident. (Board Review 04).

Det. Low (Board Review 05) said he showed § 87(2)(b) the narcotics recovered from the apartment and said § 87(2)(b) could be held liable for the narcotics, given that the apartment was leased to her, and that she could possibly lose the apartment if New York City Housing Authority (NYCHA) found out that there was narcotics inside the apartment. Det. Low then told § 87(2)(b) that it would be unfair for § 87(2)(b) to lose her apartment because of his narcotics dealings. Det. Low did not recall having any interactions with § 87(2)(b) and denied making any statements about arresting her, but said she too could have been arrested and charged with the possession of a controlled substance given that the narcotics were recovered from her apartment.

A person is guilty of criminal possession of a controlled substance when he or she knowingly and unlawfully possesses one or more preparations, compounds, mixtures or substances containing a narcotic drug. New York State Penal Law Section 220.18 (Board Review 06).

Residents and their families can be evicted for drug activity on or off NYCHA's grounds, or under the Bawdy House Law for illegal drug trade or activity on NYCHA premises. New York City Housing Authority Residents Handbook. (Board Review 07).

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Allegation (E) Abuse of Authority: An officer threatened § 87(2)(b) with the use of force.

Allegation (F) Abuse of Authority: An officer made sexually suggestive remark to § 87(2)(b)

Allegation (G) Abuse of Authority: An officer made a sexually suggestive gesture towards § 87(2)(b)

§ 87(2)(b) said that at some point during this incident, an unidentified officer approached her and § 87(2)(b). The officer allegedly grabbed his crotch and said to § 87(2)(b) "If we find drugs in the kitchen, I will slap you on the face with this and not my hands." § 87(2)(b) understood the officer's statement as a threat to slap § 87(2)(b) with his penis. § 87(2)(b) described this officer as light-skinned black man in his 30s,

approximately 5'10" tall, round face, average build, short dark hair, and had a scar across his chin.

As discussed earlier, § 87(2)(b) declined to participate in this complaint due to his criminal case stemming from this incident.

Det. Low denied making the alleged statements to § 87(2)(b) said he did not know of any officer who matched the description § 87(2)(b) provided, and denied hearing any officers present make the alleged statements to § 87(2)(b).

On November 28, 2018, § 87(2)(b) viewed single photos of all the officers listed on the search warrant execution tactical plan for this incident (Board Review 08), but she did not recognize any of the officers and said none of them were involved in the incident. (Board Review 09). Additionally, none of the officers listed on the Tactical plan matched the description § 87(2)(b) provided of the subject officer, § 87(2)(g).

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Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been parties (Board Review 10).
- Det. Low has been a member-of-service for 13 years and has been a subject in five CCRB complaints and five allegations, four of which were not substantiated, and one of which remains open. § 87(2)(g).

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- On November 30, 2018, a Notice of Claim inquiry was sent to the NYC Office of the Comptroller, and the inquiry is still pending. The results will be added to the case file upon receipt (Board Review 11).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
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Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date